

**SUBSTITUTE FOR
HOUSE BILL NO. 5707**

A bill to amend 1994 PA 451, entitled
"Natural resources and environmental protection act,"
by amending sections 30103 and 30305 (MCL 324.30103 and 324.30305),
section 30103 as amended by 2018 PA 163 and section 30305 as
amended by 2018 PA 631.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 30103. (1) A permit is not required under this part for
2 any of the following:

3 (a) Any fill or structure existing before April 1, 1966, in
4 waters covered by former 1965 PA 291, and any fill or structures
5 existing before January 9, 1973, in waters covered for the first
6 time by former 1972 PA 346.

7 (b) A seasonal structure placed on bottomland to facilitate



1 private noncommercial recreational use of the water if ~~it-the~~
 2 **structure** does not unreasonably interfere with the use of the water
 3 by others entitled to use the water or interfere with water flow.

4 (c) Reasonable sanding of beaches to the existing water's edge
 5 by the riparian owner or a person authorized by the riparian owner.

6 (d) Maintenance of an agricultural drain, regardless of
 7 outlet, if all of the following requirements are met:

8 (i) The maintenance includes only activities that maintain the
 9 location, depth, and bottom width of the drain as constructed or
 10 modified at any time before July 1, 2014.

11 (ii) The maintenance is performed by the landowner or ~~pursuant~~
 12 ~~to-in accordance with~~ the drain code of 1956, 1956 PA 40, MCL 280.1
 13 to 280.630.

14 (e) Maintenance and operation of a waste collection or
 15 treatment facility either ordered to be constructed or approved for
 16 operation under a state or a federal water pollution control law
 17 and this part. For purposes of this subdivision, "operation"
 18 includes dredging, filling, or construction and placement of
 19 structures in the waste collection or treatment facility in
 20 compliance with this act.

21 (f) Construction and maintenance of minor drainage structures
 22 and facilities that are identified ~~by rule-in rules~~ promulgated by
 23 the department under section 30110. Before a rule is promulgated
 24 ~~pursuant to-under~~ this subsection, the rule must be approved by the
 25 majority of a committee consisting of the director of the
 26 department, the director of the department of agriculture and rural
 27 development, and the director of the state transportation
 28 department or ~~their-the~~ **directors'** designated representatives. The
 29 rules ~~shall-must~~ be reviewed at least annually.



(g) Maintenance of a drain that either was legally established and constructed before January 1, 1973, ~~pursuant to~~ **in accordance with** the drain code of 1956, 1956 PA 40, MCL 280.1 to 280.630, except those legally established drains ~~constituting that~~ **constitute** mainstream portions of certain natural watercourses identified in rules promulgated by the department under section 30110, or was constructed or modified under a permit issued ~~pursuant to~~ **under** this part. As used in this subdivision, "maintenance of a drain" means the physical preservation of the location, depth, and bottom width of a drain and appurtenant structures to restore the function and approximate capacity of the drain as constructed or modified at any time before July 1, 2014, and includes, but is not limited to, the following activities if performed with best management practices:

(i) Excavation of accumulated sediments back to original contours.

(ii) Reshaping of the side slopes.

(iii) Bank stabilization where reasonably necessary to prevent erosion. Materials used for stabilization must be compatible with existing bank or bed materials.

(iv) Armoring, lining, or piping if a previously armored, lined, or piped section is being repaired and all work occurs within the footprint of the previous work.

(v) Replacement of existing control structures, if the original function of the drain is not changed and the original approximate capacity of the drain is not increased.

(vi) Repair of stabilization structures.

(vii) Culvert replacement, including culvert extensions of not more than 24 additional feet per culvert.



(viii) Emergency reconstruction of recently damaged parts of the drain. Emergency reconstruction must occur within a reasonable period of time after damage occurs in order to qualify for this exemption.

(h) Projects constructed under the watershed protection and flood prevention act, 16 USC 1001 to ~~1012~~-**1012a**.

(i) Construction and maintenance of privately owned cooling or storage ponds used in connection with a public utility except at the interface with public waters.

(j) Maintenance of a structure constructed under a permit issued ~~pursuant to~~ **under** this part and identified by rule promulgated under section 30110, if the maintenance is in place and in kind with no design or materials modification.

(k) A water withdrawal.

(l) Annual installation of a seasonal dock or docks, pilings, mooring buoys, or other mooring structures previously authorized by and in accordance with a permit issued under this part.

(m) Controlled access of livestock to streams for watering or crossing if constructed in accordance with applicable practice standards set by the United States Department of Agriculture, Natural Resources Conservation Service.

(n) Temporary drawdowns of impoundments at hydroelectric projects licensed by the ~~federal energy regulatory commission~~ **Federal Energy Regulatory Commission** (FERC) and subject to FERC's authority if both of the following apply:

(i) The FERC licensee has consulted this state during the drawdown plan development and this state's concerns ~~have been~~ **are** addressed in the drawdown plan as FERC considers appropriate.

(ii) Adverse environmental impacts, including stream flow,



1 aquatic resources, and timing, have been avoided and minimized to
2 the extent practical.

3 (o) Removal, by the riparian owner or a person authorized by
4 the riparian owner, of plants that are an aquatic nuisance, as **that**
5 **term is** defined in section 3301, if the removal is accomplished by
6 hand-pulling without using a powered or mechanized tool and all
7 plant fragments are removed from the water and properly disposed of
8 on land above the ordinary high-water mark. ~~as defined in section~~
9 ~~30101.~~

10 (p) Raking of lake bottomlands by the riparian owner or a
11 person authorized by the riparian owner. To minimize effects on the
12 lake bottomlands, the areas raked ~~shall~~**must** be unvegetated before
13 raking and predominantly composed of sand or pebbles, and the
14 raking ~~shall~~**must** be performed without using a powered or
15 mechanized tool. For the purposes of this subdivision, the pulling
16 of a nonpowered, nonmechanized tool with a boat is not the use of a
17 powered or mechanized tool.

18 (q) **Excavation or construction of a pond on land zoned for**
19 **residential or agricultural use if all the following conditions are**
20 **met:**

21 (i) **The pond, after excavation or construction, will be less**
22 **than 1 acre in total surface area.**

23 (ii) **The pond is or will be for noncommercial, residential use.**

24 (iii) **The pond is not connected to a lake, river, or stream.**

25 (r) **Placement or distribution of spoils from the excavation of**
26 **a pond described under subdivision (q) on land adjacent to the**
27 **upland portions of the property on which the pond is located.**

28 (2) As used in this section: ~~"/"water~~

29 (a) **"Residential use" means the use of land, buildings, or**



1 **structures for human homes or dwelling places.**

2 (b) "Water withdrawal" means the removal of water from its
3 source for any purpose.

4 (3) As used in this part, "agricultural drain" means a human-
5 made conveyance of water that meets all of the following
6 requirements:

7 (a) Does not have continuous flow.

8 (b) Flows primarily as a result of precipitation-induced
9 surface runoff or groundwater drained through subsurface drainage
10 systems.

11 (c) Serves agricultural production.

12 (d) Was constructed before January 1, 1973, or was constructed
13 in compliance with this part or former 1979 PA 203.

14 Sec. 30305. (1) Activities that require a permit under part
15 ~~325 or part 301~~ **or 325** or a discharge that is authorized by a
16 discharge permit under section 3112 or 3113 do not require a permit
17 under this part.

18 (2) The following uses are allowed in a wetland without a
19 permit subject to other laws of this state and the owner's
20 regulation:

21 (a) Fishing, trapping, or hunting.

22 (b) Swimming or boating.

23 (c) Hiking.

24 (d) Grazing of animals, including fencing and post placement
25 if the fence is designed to control livestock, does not exceed 11
26 feet in height, and utilizes an amount of material that does not
27 exceed that of a woven wire fence utilizing 6-inch vertical spacing
28 and posts.

29 (e) Farming, horticulture, silviculture, lumbering, and



1 ranching activities, including plowing, irrigation, irrigation
2 ditching, seeding, cultivating, minor drainage, harvesting for the
3 production of food, fiber, and forest products, or upland soil and
4 water conservation practices. All of the following apply for the
5 purposes of this subdivision:

6 (i) ~~Beginning October 1, 2013, to~~ **To** be allowed in a wetland
7 without a permit, these activities ~~shall~~ **must** be part of an
8 established ongoing farming, ranching, horticultural, or
9 silvicultural operation. Farming and silvicultural activities on
10 areas lying fallow as part of a conventional rotational cycle are
11 part of an established ongoing operation, unless modifications to
12 the hydrological regime or mechanized land clearing are necessary
13 to resume operation. Activities that bring into farming, ranching,
14 horticultural, or silvicultural use an area not in any of these
15 uses, or that convert an area from a forested or silvicultural use
16 to a farming, ranching, or horticultural use, are not part of an
17 established ongoing operation.

18 (ii) Minor drainage does not include drainage associated with
19 the immediate or gradual conversion of a wetland to a nonwetland,
20 or conversion from 1 wetland use to another. Minor drainage does
21 not include the construction of a canal, ditch, dike, or other
22 waterway or structure that drains or otherwise significantly
23 modifies a stream, lake, or wetland.

24 (iii) Wetland altered under this subdivision ~~shall~~ **must** not be
25 used for a purpose other than a purpose described in this section
26 without a permit from the department.

27 (f) Maintenance or operation of serviceable structures in
28 existence on October 1, 1980 or constructed ~~pursuant to~~ **under** this
29 part or former 1979 PA 203.



1 (g) Construction or maintenance of farm or stock ponds.

2 (h) Maintenance of an agricultural drain, regardless of
3 outlet, if all of the following requirements are met:

4 (i) The maintenance includes only activities that maintain the
5 location, depth, and bottom width of the drain as constructed or
6 modified at any time before July 1, 2014.

7 (ii) The maintenance is performed by the landowner or ~~pursuant~~
8 ~~to~~ **in accordance with** the drain code of 1956, 1956 PA 40, MCL 280.1
9 to 280.630.

10 (iii) The maintenance does not include any modification that
11 results in additional wetland drainage or conversion of a wetland
12 to a use to which it was not previously subject.

13 (i) Maintenance of a drain that was legally established and
14 constructed ~~pursuant to~~ **in accordance with** the drain code of 1956,
15 1956 PA 40, MCL 280.1 to 280.630, if the drain was constructed
16 before January 1, 1973 or under a permit issued ~~pursuant to~~ **under**
17 this part. As used in this subdivision, "maintenance of a drain"
18 means the physical preservation of the location, depth, and bottom
19 width of a drain and appurtenant structures to restore the function
20 and approximate capacity of the drain as constructed or modified at
21 any time before July 1, 2014, including the placement of spoils
22 removed from the drain in locations along that drain where spoils
23 have been previously placed. Maintenance of a drain under this
24 subdivision does not include any modification that results in
25 additional wetland drainage or conversion of a wetland to a use to
26 which it was not previously subject.

27 (j) Construction or maintenance of farm roads, forest roads,
28 or temporary roads for moving mining or forestry equipment, if the
29 roads are constructed and maintained in a manner to ensure that any



adverse effect on the wetland will be minimized. Borrow material for road construction or maintenance ~~shall~~**must** be taken from upland sources if feasible. In determining whether an alternative will minimize any adverse effect on the wetland, the department shall consider cost, existing technology, and logistics in light of overall project purposes.

(k) Maintenance of public streets, highways, or roads that meets all of the following requirements:

(i) Does not include any modification that changes the original location or footprint.

(ii) Is done in a manner that minimizes any adverse effect on the wetland.

(l) Maintenance or repair of utility lines and associated support structures that meets all of the following requirements:

(i) Is done in a manner that minimizes any adverse effect on the wetland.

(ii) Does not include any modification to the character, scope, or size of the originally constructed design.

(iii) Does not convert a wetland area to a use to which it was not previously subject.

~~For the purposes of this subdivision and subdivision (m), "utility line" means any pipe or pipeline used for the transportation of any gaseous, liquid, liquescent, or slurry substance, for any purpose, and any cable, line, or wire for the transmission for any purpose of electrical energy, telephone or telegraph messages, or radio or television communication.~~

(m) Installation of utility lines ~~having~~**that have** a diameter of 6 inches or less using directional drilling or boring, or knifing-in, and the placement of poles with minimal (less than 1



1 cubic yard) structure support, if the utility lines and poles are
2 installed in a manner that minimizes any adverse effect on the
3 wetland. Directional drilling or boring under this subdivision
4 ~~shall~~**must** meet all of the following requirements:

5 (i) The top of the utility line is at least 4 feet below the
6 soil surface of the wetland. However, if the presence of rock
7 prevents the placement of the utility line at the depth otherwise
8 required by this subparagraph, the bottom of the utility line is
9 not placed higher than the top of the rock.

10 (ii) The entry and exit holes are located a sufficient distance
11 from the wetland to ensure that disturbance of the wetland does not
12 occur.

13 (iii) The operation does not result in the eruption or release
14 of any drilling fluids up through the ground and into the wetland
15 and there is an adequate plan to respond to any release of drilling
16 mud or other fill material.

17 (n) Operation or maintenance, including reconstruction of
18 recently damaged parts, of serviceable dikes and levees in
19 existence on October 1, 1980 or constructed ~~pursuant to~~**under** this
20 part or former 1979 PA 203.

21 (o) Placement of biological residuals from activities,
22 including the cutting of woody vegetation or the in-place grinding
23 of tree stumps, performed under this section within a wetland, if
24 all the biological residuals originate within that wetland.

25 **(p) Excavation or construction of a pond on land zoned for**
26 **residential or agricultural use if all the following conditions are**
27 **met:**

28 **(i) The pond, after excavation or construction, will be less**
29 **than 1 acre in total surface area.**



1 (ii) The pond is or will be for noncommercial, residential use.

2 (iii) The pond is not connected to a lake, river, or stream.

3 (q) Placement or distribution of spoils from the excavation of
4 a pond described under subdivision (p) on land adjacent to the
5 upland portions of the property on which the pond is located.

6 (3) An activity in a wetland that was effectively drained for
7 farming before October 1, 1980 and that on and after October 1,
8 1980 has continued to be effectively drained as part of an ongoing
9 farming operation is not subject to regulation under this part.

10 (4) A wetland that is incidentally created as a result of 1 or
11 more of the following activities is not subject to regulation under
12 this part:

13 (a) Excavation as part of commercial sand, gravel, or mineral
14 mining, if the area was not a wetland before excavation. This
15 exemption from regulation applies until the property on which the
16 wetland is located meets both of the following requirements:

17 (i) Is no longer used for excavation as part of commercial
18 sand, gravel, or mineral mining.

19 (ii) Is being used for another purpose unrelated to excavation
20 as part of commercial sand, gravel, or mineral mining.

21 (b) Construction and operation of a water treatment pond,
22 lagoon, or ~~storm water~~**stormwater** facility in compliance with the
23 requirements of state or federal water pollution control laws.

24 (c) A diked area associated with a landfill if the landfill
25 complies with the terms of the landfill construction permit and if
26 the diked area was not a wetland before diking.

27 (d) Construction of drains in upland for the sole purpose of
28 removing excess soil moisture from upland areas that are primarily
29 in agricultural use.



1 (e) Construction of roadside ditches in upland for the sole
2 purpose of removing excess soil moisture from upland.

3 (f) An agricultural soil and water conservation practice
4 designed, constructed, and maintained for the purpose of enhancing
5 water quality.

6 (5) An area that becomes contiguous to a water body created as
7 a result of commercial excavation for sand, gravel, or mineral
8 mining is not subject to regulation under this part solely because
9 ~~it~~**that area** is contiguous to the created water body. This
10 exemption from regulation applies until the property on which the
11 wetland is located meets both of the following requirements:

12 (a) Is no longer used for excavation as part of commercial
13 sand, gravel, or mineral mining.

14 (b) Is being used for another purpose unrelated to excavation
15 as part of commercial sand, gravel, or mineral mining.

16 (6) Except as provided in subsection (7), the following
17 activities are not subject to regulation under this part:

18 (a) Leveling of sand, removal of vegetation, grooming of soil,
19 or removal of debris, in an area of unconsolidated material
20 predominantly composed of sand, rock, or pebbles, located between
21 the ordinary high-water mark and the water's edge.

22 (b) Mowing of vegetation between the ordinary high-water mark
23 and the water's edge.

24 (7) Subsection (6) does not apply to lands included in the
25 survey of the delta of the St. Clair River, otherwise referred to
26 as the St. Clair flats, located within Clay township, St. Clair
27 county, as provided for in 1899 PA 175.

28 **(8) As used in this section:**

29 **(a) "Residential use" means the use of land, buildings, or**



1 structures for human homes or dwelling places.

2 (b) "Utility line" means any pipe or pipeline used for the
3 transportation of any gaseous, liquid, liquescent, or slurry
4 substance, for any purpose, and any cable, line, or wire for the
5 transmission for any purpose of electrical energy, telephone or
6 telegraph messages, or radio or television communication.

7 (9) ~~(8)~~—As used in this part, "agricultural drain" means a
8 human-made conveyance of water that meets all of the following
9 requirements:

10 (a) Does not have continuous flow.

11 (b) Flows primarily as a result of precipitation-induced
12 surface runoff or groundwater drained through subsurface drainage
13 systems.

14 (c) Serves agricultural production.

15 (d) Was constructed before January 1, 1973, or was constructed
16 in compliance with this part or former 1979 PA 203.